

[Sindh High Court]

Judges: Hon'ble Mr. Justice Jawad Akbar Sarwana(Author)

**CONSTITUTIONAL JURISDICTION**

C. P. No. S – 597 of 2025
decided on 26th August, 2025.

(a) Constitution of Pakistan (1973)---S.Article 199(1)(a)(i), S.Article 199(1)(b), S.Article 199(1)(a)(ii), S.26th Amendment---Constitutional Jurisdiction---

The Regular Bench lacks jurisdiction to hear matters seeking directions from or against an Authority under Article 199(1)(a)(i), as such relief is now exclusively within the domain of the Constitutional Bench.

Post-26th Amendment, relief covered by Article 199(1)(a)(i) seeking directions to an Authority falls under the jurisdiction of the Constitutional Bench; the Regular Bench's roster is limited to matters where an act or proceeding has been done or taken (Article 199(1)(a)(ii)).

Mr. Rehan Kayani for Appellant.

Ms. Rabia Khalid for Respondent.

(b) PECA, 2016---S.Section 2C, S.Section 2R, S.Section 30, S.Section 37---Withdrawal of Petition---

The petition was dismissed as withdrawn because the petitioner did not press the matter following the Regulatory Authority's response, and no case for harassment was made out.

Where a petitioner is no longer aggrieved due to the issuance of a response by the Authority and chooses not to press the petition, the court may dismiss the petition as withdrawn.

Mr. Rehan Kayani for Appellant.

Ms. Rabia Khalid for Respondent.

Accordingly, the petition is dismissed as withdrawn, subject to all its legal consequences.

Order Sheet

IN THE HIGH COURT OF SINDH KARACHI

C. P. No. S – 597 of 2025

Date

Order with Signature of Judge

Hearing/Priority

1.For order on office objection Nos.1 to 9 and reply at “A” 2.For hearing of CMA No.4858/25 (stay)

3.For hearing of main case

26.08.2025

Mr. Rehan Kayani, advocate for applicant

Ms. Rabia Khalid, Assistant Attorney General

This Constitutional Petition was filed by the Petitioner-Intersys Limited on 26.07.2025, seeking directions through the Regular Bench on account of inaction on the part of the Regulatory Authority pursuant to Sections 2C, 2R, 30 and 37 of the PECA, 2016, (as amended in February 2025). Counsel submits that the

Petitioner filed a complaint with the Official Respondents, but as there was no response from them, Intersys Ltd. was constrained to file this harassment petition.

During the hearing, counsel submitted a Statement dated 26.08.2025 (today), attaching the PTA letter no.PTA/WAD/203/2022/2597 dated 18.08.2025 addressed to the Petitioner wherein the Regulatory Authority has responded to the Complaint and requested further information/materials.

The relief sought from the Regular Bench, following the 26th Amendment to the 1973 Constitution, is covered by Article 199(1)(a)(i) and 199(1)(b). In the present case, the relief of seeking directions from or against an Authority, is covered by Article 199(1)(a)(i), which relief can be heard and decided only by the Constitutional Bench and not this Regular Bench. Further, as the Authority had not passed any orders until it issued the letter dated 18.08.2025, no relief could be sought from the Regular Bench, either as nothing has accrued for relief under Article 199(1)(a)(ii) – the roster of the Regular Bench. At this stage, the petitioner is not aggrieved by the response of the Regulatory Authority and submits that the petitioner reserves its right to take appropriate action depending on how matters unfold with the Authority. Further, the said PTA letter, having been issued after the filing of the Petition, is also not the subject matter of the petition. Finally, no case of harassment is made out on perusal of the petition.

Given the above, the petitioner's Counsel does not wish to press the petition and requests that it be allowed to be withdrawn.

Accordingly, the petition is dismissed as withdrawn, subject to all its legal consequences.

J U D G E

Ashraf